

ORDER SHEET
LAHORE HIGH COURT LAHORE
JUDICIAL DEPARTMENT

Case No: Regular First Appeal No.66866/2024

Province of the Punjab and two others

Vs Akbari Begum (deceased)
through LRs and others

S.No. of order/ proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of parties or counsel, where necessary
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20.2.2025

**Mr. M. Nasim Kashmiri, Addl. Advocate General for
the appellant.**

C.M. No.01 of 2024 and Main Case.

This is a Regular First Appeal against the impugned judgment dated 20.05.2024 whereby Reference No.29/4 of 2014 under section 18 of the Land Acquisition Act, 1894 (The ‘Act’ of 1894) was accepted by respondent No.44 (Senior Civil Judge, Kasur) and award No.3 of 2014 dated 12.8.2014 was modified.

2. The instant Regular First Appeal is filed in this Court on 26.10.2024, vide diary No.149266, against the impugned judgment dated 20.5.2024, with a delay of 50 days. On the said account, an application for condonation of delay under section 5 of the Limitation Act, 1908 (The '**Act**' of 1908) read with section 151, CPC is also filed by the appellants. It is significant to note that the appellants in support of their application for condonation of delay have solely relied upon the paragraph No.3, of the said application, which reads as follows:

“3 That there is some delay in filing the titled Appeal. The delay has occurred due to late issuance of certified copy of the impugned judgment/Order and thereafter petitioner being

Government functionary has to follow procedure for filing Appeal before the Honorable High Court after soliciting approval/sanctions from relevant departments. Therefore, any delay if occurred was neither deliberate nor intentional”

3. Heard, submissions made by the learned counsel for the appellants as well as documents on the file perused.

4. At the very outset, it is observed that the application for condonation of delay does not disclose the date when the application seeking approval from the concerned authority was filed nor does the same reflect the date as to when it was granted. This fact alone weakens the stance and claim of the appellants.

5. The intention of legislature and mandate of law in prescribing the period of limitation is to be strictly followed and no concession or leniency, on cursory account, can be afforded to an indolent litigant. We are fortified with the view already adopted by the Hon’ble Supreme Court of Pakistan in case titled as “Regional Police Officer, Dera Ghazi Khan Region and others versus Riaz Hussain Bukhari” (2024 SCMR 1021) in which it has been held as under:

“6. It has been noted that oftentimes cases concerning the Federal and Provincial Governments and autonomous bodies are instituted after the lapse of the period of limitation postulated by the law and the plea taken for condoning the delay is invariably and inevitably that the time was spent in fulfilling inter-departmental procedures and seeking final instructions from the competent authority. Even private sector/organizations have begun to take a similar plea, with delays being attributed to Board Resolutions: non-availability of the concerned head or officer, delay in the law department etc., despite the aforesaid entities

having full-fledged legal departments and internal law officers. Seemingly, applications for condonation of delay are being filed as a routine matter while adopting a callous approach which fails to recognize that the delay cannot be condoned without the presence of sufficient cause or explaining the delay of each and every day. The mechanical and unpersuasive justification of administrative delays has almost become a trend which is consistently pleaded for condonation of delay through stereotypical and generalized applications, which in our point of view cannot be considered 'sufficient cause' or a reasonable ground in every case. On the contrary, it illustrates the recklessness and inefficiency of the concerned department in deciding whether they want to challenge the decision in the appellate jurisdiction of this Court or not. In the case of an individual, all decisions rest solely on him with regard to the procurement of advice for challenging the decision at higher forum; the decision to challenge; the engagement of an advocate; supplying the relevant documents to the advocate for the preparation of the appeal/petition and then following the case religiously; **however, in the case of the Government or any of its departments, the party has at its disposal the assistance of its own legal department; the help and support of the Attorney General's Office, or the Advocate General's Office as the case may be. Therefore, immediately upon receiving a copy of the judgment/order, the Government departments may move for instructions rather than waiting for the lapse of the period of limitation provided for approaching the higher Courts**"......

(Emphasis added)

6. Another Judgment, of a Division Bench of this Court, in RFA No.36584 of 2024 titled "M/s Sui Northern Gas Pipelines Limited versus M/s Bhatti Fabrics, etc" (2024 LHC 3160) presents the same ratio as in the judgment of the Hon'ble Supreme Court of Pakistan, referred above. Needless to add that

the appellants is bound under the established law to explain delay of each day, however, he failed to do so.

7. Learned counsel also relied upon the judgments reported as “Government of Balochistan through Secretary Board of Revenue, Balochistan Quetta and others versus Muhammad Ali and 11 others” (2007 SCMR 1574) and “Muhammad Bashir and another versus Province of Punjab through Collector of District Gujrat and others”(2003 SCMR 83). Both the above-referred judgments do not support the arguments advanced by the learned counsel for the appellants but rather, make it obligatory upon the state/public functionaries to strictly adhere to the period of limitation prescribed by law for the purpose of availing a remedy before a court of law also thereby disentitling any preferential treatment in terms of condonation of delay that may be claimed by public functionaries.

8. In view of the observations made hereinabove, we are of a firm opinion that the application for condonation of delay does not present any plausible ground justifying such condonation and, thus, the same is hereby dismissed. Consequently, the instant Regular First Appeal is also **dismissed, in limini.**

(Sultan Tanvir Ahmad) (Hassan Nawaz Makhdoom)
Judge Judge